

THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR

MR. JUSTICE SALAHUDDIN PANHWAR

MR. JUSTICE ISHTIAQ IBRAHIM

Crl.P No.1091/2024 and JPs No.260, 261 & 268 of 2024

(Against the judgment dated 12.09.2024, passed by the Lahore High Court, Multan Bench, Multan in Criminal Appeals No.173-J & 174-J of 2019 and Capital Sentence Reference No.1 of 2019)

Ishaq (in Crl.P No.1091/2024)

Ghulam Rasool @ Choto & others (in JP No.260/2024)

Qasim & Samad (in JP No.261/2024)

Nadir (in JP No.268/2024)

...Petitioner(s)

VERSUS

The State through PG, Punjab and another
(in Crl.P No.1091 of 2024).

The State (in JPs No.260, 261 & 268 of 2024)

...Respondent(s)

For the Petitioner(s): Sardar Usman Sharif Khosa, ASC a/w
Muhammad Usman Mirza, AOR
(in Crl.P No.1091/2024)

Syed Zeeshan Haider, ASC a/w
Muhammad Usman Mirza, ASC
(in JP No.260/2024)

Mr. Muhammad Usman Mirza, ASC
(in JP No.261 & 268 of 2024)

For the State: Rai Akhtar Hussain, Addl. PG, Punjab
(in all matters)

Date of hearing: 04.05.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- Jail Petitions No.260 and 268 of 2024 are barred by 27 days, whereas Jail Petition No.261 of 2024 is barred

by 31 days. The petitioners have moved applications seeking condonation of delay in filing the aforesaid Jail Petitions. Keeping in view the nature of the sentence awarded to the petitioners, i.e., sentence of death, coupled with the plausible explanation furnished in the applications, the same are allowed in the interest of justice and the delay in filing the above-mentioned Jail Petitions is hereby condoned.

2. Petitioners (1) Ghulam Rasool @ Choto (2) Nadir (3) Din Muhammad (4) Khalid @ Khalidi (5) Ishaq (6) Akram @ Akri @ Mullan (7) Sher Khan (8) Behram (9) Basheer (10) Abdul Wahid (11) Mujeeb-ur-Rehman (12) Hussain Bakhsh @ Gaila & (13) Piyara, along with co-accused Ghulam Haider, Hakim, Razzaq, Majid, Nasir Juma alias Bhutta and Rasheed, were tried by the learned Judge Anti-Terrorism Court-I, Multan (**'Trial Court'**) in case FIR No.47 dated 13.04.2016, under sections 302, 324, 395, 412, 365, 353, 176, 337-A(i), 337-D, 337-F(i), 337-F(iii), 337-L(ii), 121, 122, 148 and 149 of the Pakistan Penal Code, 1860 (**'PPC'**), sections 3, 4 & 5 of the Explosive Substances Act, 1908 and section 7 of the Anti-Terrorism Act, 1997 (**'ATA'**), registered at Police Station Bangala Iccha, District Rajanpur vide Spl. Case No.53/1/ATC-1/MN/2018. Upon conclusion of trial, the Trial Court vide judgment dated 12.03.2019 convicted and sentenced the petitioners and the above named co-accused as under: -

Under Section 302(b)/149 PPC:- Sentenced to death as Ta'zir on six counts and to pay Rs.20,00,000/-, as compensation under section 544-A Cr.P.C. each to legal heirs of each martyred police official/deceased and in default of payment thereof to further undergo six months simple imprisonment (S.I.) each.

Under Section 7(a) ATA:- Sentenced to death on six counts and to pay Rs.20,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 324/149 PPC: Sentenced to undergo 10 years rigorous imprisonment (R.I) on seven counts each and to pay Rs.5,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 7(c) ATA: Sentenced to undergo 10 years R.I. on seven counts each and to pay Rs.5,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 365/149 PPC: Sentenced to undergo seven years R.I. each and to pay Rs.1,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 395/149 PPC: Sentenced to undergo 10 years R.I. each and to pay Rs.2,00,000/- each as fine and in default thereof to undergo six months S.I. each.

Under Section 412/149 PPC: Sentenced to undergo 10 years R.I. each and to pay Rs.1,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 353/149 PPC: Sentenced to undergo 02 years R.I. each and to pay Rs.1,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 186/149 PPC: Sentenced to undergo 03 months R.I. each and to pay Rs.1500/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 121/149 PPC: Sentenced to undergo rigorous imprisonment for life each and to pay Rs.5,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 122/149 PPC: Sentenced to undergo 10 years R.I. each and to pay Rs.2,00,000/- as fine and in default thereof to further undergo six months S.I. each.

Under Section 3 Explosive Substances Act, 1908: Sentenced to death each on six counts.

Under Section 5(A) Explosive Substances Act, 1908: Whole property of each was forfeited to the Government. Robkar was ordered to be issued to the Collector/Deputy Commissioner concerned.

Under Section 337-D PPC: Petitioner Nadir was sentenced to undergo 10 years imprisonment as Tazir and to pay Arsh equal to one third of the Diyat to injured Saif Ullah No.760/C.

Under Section 337-A(i) PPC: Petitioner Nadir was sentenced to undergo 02 years imprisonment as Ta'zir and to pay Rs.20,000/- as Daman to injured Saif Ullah No.760/C.

Under Section 337-L(ii) PPC: Petitioner Nadir was sentenced to undergo 02 years imprisonment as Ta'zir and to pay Rs.10,000/- as Daman to injured Saif Ullah No.760/C.

The sentences of imprisonment of the petitioners were order to run concurrently and benefit of section 382-B Cr.P.C. was extended to them.

3. Petitioner Qasim and Samad in Jail Petition No.2161 of 2024, being juveniles, were tried separately in the aforesaid FIR, by the same Trial Court in the capacity of the Juvenile Court ('Trial Court') vide Spl. Case No.54/1/ATC-1/MN/2018 and vide separate judgment dated 12.03.2019, both were convicted and sentence as below:-

Under Section 302(b)/149 PPC:- Sentenced to imprisonment for life each on six counts and to pay Rs.20,00,000/-, each as compensation under section 544-A Cr.P.C. to legal heirs of each martyred police official/deceased and in default of payment thereof to further undergo six months simple imprisonment (S.I.) each.

Under Section 7(a) ATA:- Sentenced to imprisonment for life each on six counts and to pay Rs.20,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 324/149 PPC: Sentenced to undergo 10 years rigorous imprisonment (R.I) on seven counts each and to pay Rs.5,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 7(c) ATA: Sentenced to undergo 10 years R.I. on seven counts each and to pay Rs.5,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 365/149 PPC: Sentenced to undergo seven years R.I. each and to pay Rs.1,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 395/149 PPC: Sentenced to undergo 10 years R.I. each and to pay Rs.2,00,000/- each as fine and in default thereof to undergo six months S.I. each.

Under Section 412/149 PPC: Sentenced to undergo 10 years R.I. each and to pay Rs.1,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 353/149 PPC: Sentenced to undergo 02 years R.I. each and to pay Rs.1,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 186/149 PPC: Sentenced to undergo 03 months R.I each and to pay Rs.1500/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 121/149 PPC: Sentenced to undergo rigorous imprisonment for life each and to pay Rs.5,00,000/- each as fine and in default thereof to further undergo six months S.I. each.

Under Section 122/149 PPC: Sentenced to undergo 10 years R.I. each and to pay Rs.2,00,000/- as fine and in default thereof to further undergo six months S.I. each.

Under Section 3 Explosive Substances Act, 1908: Sentenced to imprisonment for life each on six counts.

Under Section 5(A) Explosive Substances Act, 1908: Whole property of each was forfeited to the Government. Robkar was ordered to be issued to the Collector/Deputy Commissioner concerned.

The sentences of the petitioners were order to run concurrently and benefit of section 382-B Cr.P.C. was extended to them.

4. Criminal Appeal No.173-J of 2019, filed by all the major accused-convicts, was partly allowed by the Lahore High Court, Multan Bench Multan (**“the High Court”**). Consequently, the conviction and sentences of convicts ***Ghulam Haider, Hakim, Razzaq, Majid, Juma @ Bhutta, Rasheed, Nasir, and Abdul Wahid*** were set aside and they were acquitted of the charge.

The Murder Reference sent by the Trial Court, to their extent was answered in the negative vide judgment dated 12.09.2024.

5. Through the same judgment, the High Court dismissed the aforesaid appeal to the extent of convict-petitioners Ghulam Rasool @ Chotto, Nadir, Din Muhammad, Khalid alias Khalidi, Ishaq, Akram alias Akri alias Mullan, Sher Khan, Behram, Basheer, Mujeeb-ur Rehman, Hussain Bakhsh alias Gaila and Piyara. Their convictions and sentences recorded and awarded by the Trial Court, were up held and consequently, to their extent the Capital Sentence Reference No.1 of 2019, sent by the Trial Court, for confirmation of their death sentence was answered in the affirmative.

6. Vide separate judgment dated 12.09.2019 (**'impugned judgment'**), Criminal Appeal No.174-J of 2019, filed by the juvenile convicts-petitioners was dismissed by the High Court and their conviction and sentences were upheld.

7. Through the instant Criminal Petition and Jail Petitions, the major petitioners-convicts and the juvenile petitioners-convicts have questioned the impugned judgments of the High Court.

8. The case of the prosecution, in brief, as set forth in the First Information Report (FIR) registered on the complaint of Pervaiz Akhtar Inspector (PW-19), is that on 13.04.2016, Muhammad Hanif Ghauri Sub-Inspector/SHO of Police Station Bangla Iccha, received spy information that in the area of *Kacha*, members of various notorious gangs, namely, *Choto gang*, *Sikhani gang*, *Andrani gang*, *Chingwani gang*, comprising hardened, desperate and dangerous criminals as well as proclaimed offenders, were present within the limits of *Chak Dhanwani*, armed with sophisticated weapons including hand grenades. For the purpose of arresting the said outlaws and to cordon off the area of their presence, a raiding party comprising three teams of police was constituted. Team No.1 was headed by Muhammad Hanif Ghauri SHO along with 25 police officials. Team No.2 was headed by Muhammad Ajmal HC along with 10 police officials and Team No.3, was headed by the Inspector Pervaiz Akhtar, along with seven police officials. The members of the

three teams were equipped with official arms and ammunitions. The three teams, proceeded on boats towards the place of presence of the outlaws from *Pattan Thath* to *Kacha* and reached *Chak Dhanwani*, where Teams No.1 and 2, in accordance with the standard operating procedure (SOPs), disembarked from the boats to take positions, while Team No.3 also advanced towards the designated side to complete the encirclement. The outlaws had concealed themselves in a Morcha, from which petitioner-convict Ghulam Rasool alias Chhoto, emerged first, raised *lalkara* as to how the police dare to enter in their area, and threw a hand grenade towards Teams No.1 and 2. Thereafter, co-accused, namely, Kabul Sikhani (absconding) threw a hand grenade towards team No.3 and then accused, Khuda Bakhsh alias Khudi Lund (absconding), petitioners-convicts Khalid alias Khalidi, Ishaq, Nadir, Sher Khan and Qasim Malik Changwani, Bilal alias Jakha, Dareeshan alias Daado, Mattara Hazara, Lala, Sikhani, Sabir Din (all absconding), armed with firearms and hand grenades, also came out of the Morcha and attacked on the police teams by firing at them. In the ensuing encounter, accused Khuda Bakhsh alias Khudi Lund (absconding) resorted to burst firing, causing firearm injuries to Muhammad Hanif Ghauri SHO on his head and different parts of his body. Petitioner-convict Ghulam Rasool alias Choto fired at Muhammad Ajmal HC, causing him a fatal injury, while accused Kabul Sikhani (absconding) fired at Constable Obaid Ullah Faheem who got hit and succumbed to his injuries at the spot. With the firing of petitioner-convict Muhammad Khalid alias Khalidi Constable Muhammad Tariq got hit on his face and abdomen. Similarly, with the firing petitioner-convict Ishaq Constable Muhammad Shakeel got hit. The firing of accused Bilal Jakha (absconding) hit constable Aftab Ahmad on his chin and right hand. With the firing of accused Dareehan alias Daadu (absconding) Constable Amanullah got hit on his buttock. With the firing of absconding accused Sabir Din Lund, Constable Haq Nawaz got hit on his left Knee. With the firing of absconding accused Kabul Constable Zabi Ullah got hit on his head. Constable Muhammad Ishaq received fire shots with the firing of absconding accused Matara. With the firing of absconding accused, Hazara Constable Tanveer got hit. Absconding co-accused Qasim

Malik fired at constable Saeed Ahmad, as a result, he got hit on his thigh. With the firing of absconding co-accused Nadir Sikhani, Constable Saifullah, got hit near his buttock. It is further alleged that when the injured were shifting by Pervaiz Akhtar Inspector and his team in the boats, accused Samad, Basheer, Nadir, Piyara, Mujeeb-ur-Rehman, Hussain Bakhsh, Akram and Behram (petitioners-convicts), along with absconding co-accused Nawab Qasim, Abdullah Dashti, Shehzada Dashti, Habib, Rahib, Suleman, Ahmad Din, Haji, Janu, Khanu, Muhammad Nasrullah, Nazir, Meer Haji, Ghulam Nabi accompanied by some 40/45 unknown accomplices, also joined the encounter from different sides and resorted to indiscriminate firing at the police. The police officials in their self-defence, also resorted to firing. Pervaiz Akhtar Inspector along with his team attended the injured and the deceased police officials through boats towards Pattan Thath for medical treatment where Muhammad Hanif Ghauri SHO, Muhammad Ajmal HC, Constables Muhammad Shakeel, Muhammad Tariq, Aman Ullah, and Obaid Ullah Faheem were found to have embraced martyrdom. The firing/encounter remained continued between the members of the police teams and the accused and when the ammunitions of the police officials ended, the accused snatched from the police officials, their officials arms, their belongings and made Mazhar Hussain ASI (PW.21), HC Siddique (PW.22), Liaqat Ali HC (PW.23), Ghulam Dastgir constable (PW.24), Elahi Bakhsh constable (PW.25), constable Muhammad Akhtar (PW.26), constable Muhammad Rafique (PW.27), constable Muhammad Sajjad (PW.28), constable Iftikhar (PW.29), constable Muhammad Asif (PW.30), constable Siraj Ahmad (PW.31), HC Abid Hussain (PW.32), constable Kaleem Shaukat (PW.33) constable Munir Hussain (PW.34), HC Alamdar (PW.35), constable Muhammad Rashid (PW.36), Asad Ullah SI (PW.41), Muhammad Fayyaz (PW.51), Rehan Nawaz constable (PW.52), Muhammad Shafique constable (PW.53), constable Abdul Majeed (PW.54) and HC Altaf Hussain (PW.55) hostages. The accused made call through the hostages to their relatives for restraining the police party from making firing upon the accused and they remained in their hostage since 13.04.2016 to 21.04.2016 and ultimately, on the intervention of the Pakaistan Army, the

hostage police officials were rescued and their statements were recorded under section 161 Cr.P.C. by the Investigating Officer.

9. Upon completion of investigation, challan against the petitioners-convicts (major accused) was submitted before the Trial Court while separate challan against the petitioners-convicts (juvenile accused) was submitted before the same trial Court in the capacity of Judge Juvenile Court. After facing full dressed trial, the petitioners-convicts were convicted and sentenced by the Trial Courts and their conviction and sentences were upheld by the High Court, as stated in detail above, hence, these petitions by the petitioners-convicts.

10. We have heard the arguments of learned counsel for the petitioners-convicts as well as the learned Additional Prosecutor General appearing on behalf of the State and perused the record, evidence and the judgments of the Courts below with their able assistance.

11. Accused Kabul, Hazara, Nawaz, Meer Haji, Shahzada, Ameen, Khuda Bakhsh, Qasim son of Jamal, Habib, Sana Ullah, Lala, Nadir, Nasrullah, Ghulam Nabi, Dareehan, Mujeeb s/o Aman Ullah, Sabar Din, Ahmad, Aslam, Matara, Saiva, Bashir, Abdullah, Haji, Abdullah Ghani, Rahib, Challo, Jan Muhammad are still absconding and they have been declared as proclaimed Offenders by the Trial Court.

12. It appears from the record that the prosecution's case comprises of two episodes. The first episode pertains to the firing and throwing hand grenades on the police teams by the accused while the second episode relates to the abduction of the police officials, snatching their officials' arms, their belongings and keeping them in hostages. In the First episode, Muhammad Hanif SI/SHO, Muhammad Ajmal HC, Constables, namely, Obaid Ullah, Shakeel Ahmad, Muhammad Tariq and Aman Ullah, embraced martyrdom due to firing while Constables, namely, Saifullah, Zaib Ullah, Haqa Nawaz, Tanveer Hussain, Saeed Ahmad, Muhammad Ishaq and Aftab Ahmad, sustained firearm injuries.

13. The ocular account of the first episode has been furnished by the injured eyewitnesses, namely, Constables Saif Ullah (PW-18), Zabih Ullah (PW-16), Haq Nawaz (PW-17), Tanveer Hussain (PW-14), Saeed Ahmad (PW-13), Muhammad Ishaq (PW-15), Aftab Ahmad (PW-12) as well as Kaleem Ullah, SI (PW-43), Saif Ullah, ASI (PW-47), Habib Ullah, ASI (PW-48), Abdul Ghani, ASI (PW-49), and Inspector Pervaiz Akhtar (PW-19). A careful perusal of their testimonies reveals that these eyewitnesses were members of the police party who, in the discharge of their official duties, proceeded to the place of occurrence for the arrest of the petitioners-convicts and their co-accused who were desperate, dangerous and hardened criminals belonging to various notorious gangs of a well-known area of *Kacha*. In their statements, the eyewitnesses have consistently assigned the role of effective firing upon deceased Head Constable Muhammad Ajmal to petitioner-convict Ghulam Rasool alias Chhoto; the role of effective firing upon deceased Constable Muhammad Tariq to petitioner-convict Muhammad Khalid alias Khalidi; and the role of effective firing upon Constable Shakeel Ahmad deceased to petitioner-convict Ishaq. Likewise, the role of effective firing upon injured Constable Saif Ullah has been attributed to absconding co-accused Nadir Sikhani; the role of effective firing upon injured Constable Zabih Ullah to absconding co-accused Kabul; the role of effective firing upon injured Constable Muhammad Ishaq to absconding co-accused Matara; whereas the role of effective firing upon Constable Tanveer Hussain has been assigned to absconding co-accused Hazara. The eyewitnesses have assigned the role of effective firing on the person of injured constable Aftab Ahmad to absconding co-accused Bilal Jakha and role of effective firing upon the person of injured constable Aman Ullah to absconding accused Areeshan alias Daadu. The role of effective firing upon constable Haq Hawaz has been assigned by them to absconding co-accused Sabar Din. The presence and participation of petitioners-convicts Piyara, Qasim, Samad, Nadir, Din Muhamamd, Akram, Behram, Basheer, Abdul Wahid, Mujeeb ur Rehman and Hussain Bakhsh, have not been shown by the eyewitnesses in the first episode. Though presence of petitioner-convict Sher Khan has been shown by them but he has not been

assigned the role of effective firing either on any of the deceased or the injured.

14. The medical evidence furnished by Dr. Waseem Sajjad (PW.5), Dr. Adeel Khalid (PW.6), Dr. Mohsin Bilal, Dr. Abdul Rauf, Dr. Aftab Ahmad, Dr. Manzoor Ahmad Manzoor, and Dr. Abdul Hameed, who conducted the postmortem examinations of the deceased police officials and medically examined the injured witnesses, fully corroborates and lends assurance to the ocular account furnished by the prosecution witnesses. Similarly, the circumstantial evidence collected by the Investigating Officer from the spot in the shape of blood and crime empties coupled with positive FSL report in this regard as well as recoveries of the crime weapons from possession of the petitioner-convicts fully corroborate the ocular account of the prosecution's case.

15. In view of what has been discussed above, we are persuaded to hold that the prosecution has successfully established the guilt of petitioner-convicts Ghulam Rasool alias Chhoto, Muhammad Khalid alias Khalidi and Ishaq through trustworthy, confidence-inspiring and wholly reliable direct evidence furnished by the injured eyewitnesses as well as other police officials, who were members of the police teams constituted for the arrest of hardened, desperate and dangerous criminals belonging to various notorious gangs operating in the Kacha area. Their ocular is corroborated by strong circumstantial evidence secured by the Investigating Officer from the place of occurrence in the shape of blood-stained earth, recovery of crime empties, recoveries of the weapons of offence from the possession of petitioner-convicts Ghulam Rasool alias Chhoto, Khalid alias Khalidi and Ishaq, and supported by the medical evidence. The defence has failed to establish any previous enmity, ill will or ulterior motive on the part of the prosecution witnesses which could even remotely suggest false implication of the petitioners-convicts in such a grave and heinous occurrence. The prosecution has further succeeded in proving the active participation of the above-named petitioners-convicts not only in the murderous assault upon the police party but also in the subsequent episode relating to the abduction of police officials, snatching of their official weapons

and personal belongings, and keeping them hostage for several days. The argument that some of the deceased and injured sustained only a solitary firearm injury is of no legal consequence in the facts and circumstances of the present case. The prosecutions has also proved the liability of the petitioners-convicts under sections 148 and 149 PPC. Section 148 PPC deals with rioting armed with deadly weapons, whereas section 149 PPC embodies the principle of vicarious liability by providing that if an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members of the assembly knew to be likely committed in prosecution of that object, every member of such assembly at the relevant time shall be held guilty of that offence. For attracting the provisions of section 149 PPC, the prosecution is required to establish; that the accused persons constituted an unlawful assembly; that the accused persons shared a common object; that the offence was committed in prosecution of such common object or was such which the members of the assembly knew to be likely committed in prosecution thereof; and that the accused persons were members of the unlawful assembly at the time of commission of the offence. The existence of common object is to be inferred from the overall conduct of the accused persons, the nature of weapons carried by them, the manner in which they assembled, their coordinated movements, the concerted attack launched by them, the violence perpetrated at the spot and the consequences flowing therefrom.

16. In the present case, the prosecution has proved all the essential ingredients of section 149 PPC beyond reasonable doubt. The evidence on record clearly establishes that the petitioners-convicts, armed with sophisticated and deadly weapons, formed part of an unlawful assembly and jointly launched a deadly assault upon the police party with the avowed object of resisting arrest, eliminating the police officials and challenging the writ of the State. Therefore, each member of the unlawful assembly is equally liable for the acts committed by the others in prosecution of their common object, including the offences of murder, attempted murder, causing firearm injuries, abduction and hostage-taking. Admittedly, the

police officials had proceeded to the area in the lawful discharge of their official duties for the arrest of proclaimed offenders and dangerous criminals belonging to notorious gangs operating in the Kacha area. Instead of submitting to the authority of law, the petitioners-convicts and their accomplices mounted a coordinated and ruthless attack upon the law enforcement personnel. As a result thereof, six police officials were mercilessly murdered, several others sustained firearm injuries, twenty-four police officials were abducted, their official weapons and personal belongings were snatched, and they were unlawfully detained as hostages for several days. Such acts were not merely offences against individual police officials; rather, they constituted a direct assault upon the authority and writ of the State itself. The conduct of the petitioner-convicts squarely falls within the ambit of "terrorism" as defined under section 6 of the Anti-Terrorism Act, 1997, inasmuch as the acts complained of were designed to create a sense of fear and insecurity amongst law enforcement agencies, overawe the Government, intimidate public servants in the discharge of their lawful duties, and challenge the authority of the State through indiscriminate violence and armed resistance. The menace of organized criminal gangs operating in Kacha areas has become a serious challenge to the maintenance of law and order and to the authority of the State. Any organized armed attack upon police officials performing official duties is an attack upon the entire criminal justice system and cannot be viewed with leniency. The brutality showed by the petitioners-convicts in the present case reflects complete disregard for human life, State authority and the rule of law. The merciless killing of police officials, indiscriminate firing upon law enforcement personnel, abduction of State functionaries and keeping them, hostage for days together demonstrate a degree of audacity and savagery which shocks the judicial conscience. The manner in which the occurrence was executed, the heavy arms used by the accused persons, the number of casualties caused, and the subsequent hostage-taking episode obviously establish that the petitioner-convicts are hardened and dangerous criminals who posed a grave threat not only to the police force but also to society at large. The enormity and brutality of the offence leave no room for extending

any leniency in the matter of sentence. The learned Courts below, therefore, rightly convicted and sentenced petitioners-convicts Ghulam Rasool alias Choto, Muhammad Khalid alias Khalidi and Ishaq for the offences charged against them, and we find no illegality, infirmity or perversity in the conclusions reached by the Courts below warranting interference by this Court. The sentences awarded to them are fully commensurate with the gravity, heinousness and barbarity of the offences committed by them and do not call for any mitigation whatsoever.

17. The complicity of the petitioners-convicts charged only for the second episode is concerned, as per the contents of the FIR and statements of Mazhar Hussain, ASI (PW-21), HC Siddique (PW-22), Liaqat Ali, HC (PW-23), Ghulam Dastgir Constable (PW-24), Elahi Bakhsh Constable (PW-25), Muhammad Akhtar Constable (PW-26), Muhammad Rafique Constable (PW-27), Muhammad Sajjad Constable (PW-28), Iftikhar Constable (PW-29), Muhammad Asif Constable (PW-30), Siraj Ahmad Constable (PW-31), Abid Hussain, HC (PW-32), Kaleem Shaukat Constable (PW-33), Munir Hussain Constable (PW-34), Alamdar, HC (PW-35), Muhammad Rashid Constable (PW-36), Asad Ullah, SI (PW-41), Muhammad Fayyaz (PW-51), Rehan Nawaz Constable (PW-52), Muhammad Shafique Constable (PW-53), Abdul Majeed Constable (PW-54) and Altaf Hussain, HC (PW-55), who remained hostages from 13.04.2018 till 21.04.2018 and were subsequently recovered/released through the efforts of the Pakistan Army and police authorities, petitioners-convicts Qasim, Din Muhammad, Piyara, Basheer, Mujeeb-ur-Rehman, Hussain Bakhsh alias Gaila, Behram and Akram after completion of the first episode arrived at the spot when the injured and martyred police officials were being shifted through boats and at that stage they along with certain absconding co-accused persons, resorted to firing upon the police which proved ineffective, however, thereafter they abducted the police officials, snatched their official weapons and personal belongings and kept them as hostages. Sufficient evidence is available on file to show that the petitioners-convicts have participated in second episode of abduction of the police officials and keeping them in hostage along with absconding co-accused.

Eyewitnesses of the second episode have consistently implicated them in their statements for the second episode. The testimonies of the eyewitnesses of the second episode remained unshaken despite lengthy and searching cross-examination and nothing favourable to the defence or adverse to the prosecution could be elicited therefrom. However, a careful scrutiny of the record reveals that no evidence whatsoever has been brought on record by the prosecution to establish that the petitioners-convicts of the second episode, were the active members of the unlawful assembly of the first episode. Likewise, no evidence has been produced by the prosecution to establish the existence of any common object shared by the petitioners-convicts with the members of the unlawful assembly of the first episode or sharing their common objection so as to attract vicarious liability and common object under sections 149 or 34 PPC in respect of the offences of murder, attempted murder and hurts committed during the first episode to the prosecution's witnesses. The prosecution evidence itself clearly distinguishes the role of the petitioners-convicts of the second episode from those who had participated in the first episode resulting in the murders and injuries to police officials. Therefore, in these circumstances, the conviction and sentence of petitioners-convicts, Din Muhammad, Akram, Behram, Basheer, Abdul Wahid, Sher Khan, Mujeeb-ur-Rehman, Hussain Bakhsh alias Gaila, Piyara, Samad and Qasim under sections 302, and various offences relating to hurt cannot be sustained in the eye of law.

18. For what has been discussed above, Criminal Petition No.1091 of 2024, filed by petitioner-convict Ishaq is dismissed and leave to appeal is refused. Similarly, Jail Petition No.260 of 2024, is dismissed to the extent of petitioners-convicts Ghulam Rasool alias Choto, Khalid alias Khalidi and Ishaq, and leave to appeal is refused. Their convictions and sentences under sections 302(b), 324, 365, 395, 353, 412, 186, 121, 122, 337-D, 337-A(i), 337-L(ii) PPC, Sections 7(a) and 7(c) ATA and Sections 3 and 5-A Explosive Substances Act, 1908 recorded by the Courts below are upheld.

19. JP No.260 of 2024, to the extent of petitioners-convicts, Behram, Basheer, Mujeeb ur Rehman, Hussain Bakhsh, Piyara,

Akram, Din Muhammad and Sher Khan, is converted into appeal and partly allowed in the terms, that their conviction and sentences under sections 302(b), 395, 412, 337-D, 337-A(i), 337-L(ii) and 149 PPC and Sections 3 and 5(A) Explosive Substances Act, 1908 PPC are set aside and they are acquitted under these offences. Their conviction and sentences under sections 186, 121, 122, 324, 353, 365 PPC are maintained with modification that their sentence under section 121 PPC is reduced from life imprisonment to fourteen years rigorous imprisonment. Their conviction under section 7(c) ATA is converted into section 7(b) ATA and they are sentenced to undergo ten years R.I. The substantive sentences of imprisonment under the above offences shall run concurrently. Benefit of section 382-B Cr.P.C. is extended to them.

20. Jail Petition No.261 of 2024 and 268 of 2025, are converted into appeals and partly allowed. Conviction and sentences of appellants-convicts Qasim, Samad and Nadir under section 302(b), 395, 412, 337-D, 337-A(i), 337-L(ii) and 149 PPC and Sections 3 and 5(A) Explosive Substances Act, 1908 are set aside and they are acquitted under these offences. Their conviction and sentence under sections 186, 121, 122, 324, 353, 365 PPC are maintained with modification that their sentence under section 121 PPC is reduced from life imprisonment to fourteen years rigorous imprisonment. Their conviction under section 7(c) ATA is converted into section 7(b) ATA and they are sentenced to undergo ten years R.I. The substantive sentences of imprisonment in the above offences, shall run concurrently. Benefit of section 382-B Cr.P.C. is extended to them.

Islamabad the

4th May, 2026

Approved for Reporting

M.Siraj Afridi PS